



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 16, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201907132 regarding Deputy Inspector William Glynn, Tax No. [REDACTED]
(DADS No. 2020-22997)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the proposed penalty outweighs the actions committed by Deputy Inspector Glynn. Specifically, Deputy Inspector Glynn received information from two confidential but credible sources that a specific individual was carrying a firearm. While canvassing the confines of the 94th Precinct, Deputy Inspector Glynn soon came across and stopped the individual suspected of carrying a firearm.

The individual attempted to flee Deputy Inspector Glynn, which further raised Deputy Inspector Glynn's suspicion level. The individual was stopped during which time he yelled and flailed his body and generally refused to comply with lawful orders. All of the actions of the individual, when taken together, indicated that he may be armed.

Based on the actions of the stopped individual, the Civilian Complaint Review Board found, and the Police Commissioner agrees, that Deputy Inspector Glynn was correct in performing the initial protective frisk. During this frisk Deputy Inspector Glynn felt an object in the individual's pants pocket—an object which Deputy Inspector Glynn suspected of being a small caliber firearm. Therefore, it is the position of the Police Commissioner that Deputy Inspector Glynn correctly searched the pants pocket of the stopped individual.

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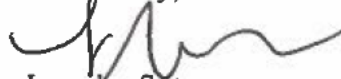
Website: <http://nyc.gov/nypd>

The search of the pocket did not yield a firearm; however, once additional officers arrived on the scene, Deputy Inspector Glynn ordered one of them to perform an additional protective frisk of the stopped individual. This protective frisk was ordered *after* the initial frisk and search were already performed. Thus, there is no articulable reason for why a secondary frisk of the stopped individual was ordered and why it was ultimately performed.

Therefore, the Police Commissioner directs that Deputy Inspector William Glynn receive Training from the Legal Bureau in Patrol Guide Procedure 212-11 (Investigative Encounters/ Frisk and Search) for ordering a secondary protective frisk of the stopped individual.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office